



Feasibility Overview

Claremont Road, Luton, Bedfordshire

1. Property and Location Overview

The subject property is a mid terrace dwelling in the Beech Hill ward of Luton, off the Dunstable Road corridor. It is currently a three bedroom house with three reception rooms, and was on the market at the time of the study.

The property is large for its type and already benefits from a rear extension, which reduces build cost. Neighbouring houses on the street carry rear dormers, which indicates the roof can take a comparable loft conversion and the head height needed for it.

The planning designations are clear. The site is not in an Article 4 area, not in a conservation area, not listed, not in a flood zone, and not in the green belt. A change of use to a six bedroom C4 HMO is therefore permitted development.

A small number of HMOs exist nearby, but Luton operates no HMO density, concentration or sandwiching policy, so the presence of other HMOs does not constrain the scheme. The location suits shared living, with demand from professionals and hospital and airport workers and good rail and road access to London.

2. Proposed HMO Strategy

Target: a seven bedroom HMO delivered in two stages, with all rooms en suite.

- Stage one is a six bedroom C4 HMO plus a rear dormer loft, both permitted development, confirmed by a Lawful Development Certificate.
- Stage two adds a seventh bedroom as a large HMO (sui generis) by full planning, once the six bedroom HMO is established.
- All bedrooms are en suite, which supports valuation and lending.
- One room can be run as a double later to reach eight persons, subject to survey, though this is not recommended as a base case.

Why the scheme is phased

The one policy that could affect the seventh bedroom is the protection of family housing. This is applied in Luton through Policies LLP1 and LLP15. Establishing the property first as a lawful, tenanted six bedroom HMO removes the family dwelling, so the seventh bedroom is judged as an addition to an existing HMO rather than the loss of a family home.

The six bedroom certificate should be implemented and tenanted, with tenancy and licence records kept, rather than relied on as a paper approval. Given the current political pressure against HMOs, a fully established use gives the seventh bedroom argument its full weight.

Room and amenity sizing

- Every bedroom exceeds the standards. No single bedroom falls below 10 sqm, against a 6.51 sqm legal minimum and a 7.5 sqm design target.
- The communal target for seven persons is 23.5 sqm (kitchen 11 sqm plus living and dining 12.5 sqm). The proposed scheme provides about 32 sqm, well above the minimum.



3. Design Opportunities and Key Constraints

Ground floor

Two bedrooms sit to the front and centre, each about 10 sqm, with en suites placed in the darker central zone so the bedrooms keep the natural light. Bedroom one retains the bay window. The whole rear becomes a single communal space, arranged as kitchen, then dining, then a living area with direct access to the garden. The rear window is proposed as double doors to the garden.

Upper floors

Internal change is kept to a minimum to control cost, reusing existing walls and the existing bathroom. The bedrooms are generous for the house type. En suites are stacked floor to floor for simpler construction. Larger rooms above 13 sqm can take a tea station, that is a small fridge, sink and cupboard, to lift room appeal and rent.

Loft

A rear dormer under permitted development provides two further bedrooms with two en suites and rooflights. The dormer must stay within the 40 cubic metre terrace volume allowance and set back 200mm from the eaves. The loft is the main uncertainty. Head height, and any floor drop, will be confirmed by survey, and only space above 1.5m counts toward the room area.

Outbuilding

The outbuilding is about 20 sqm. It is too small to be a dwelling, since the minimum for a one person home is 37 sqm, and it is short on garden and independent access. It is proposed as a shared co working space for the tenants. As an ancillary amenity it strengthens the seventh bedroom application, because case officers and committees view extra communal amenity favourably.

Bin and cycle storage

A dedicated screened store is proposed to the rear, with a clear presentation route to the highway, which is the point officers scrutinise on terraced HMOs.

4. Planning Position and Risk

Principle of development

- Six bedroom C4 plus the loft is permitted development, confirmed by a Lawful Development Certificate.
- A nearby certificate confirms the route, at 5 Shaftsbury Road, a terrace in the same area granted an LDC for a rear dormer plus a C4 conversion.
- The seventh bedroom is sui generis and needs full planning, judged under Policy LLP17 on character, standards and amenity.

Key planning risk

The protection of family housing is the one policy that could affect the seventh bedroom. It is not an express test in Luton but is applied through Policies LLP1 and LLP15 and the housing need evidence. It is mitigated by establishing the six bedroom HMO first, so there is no family dwelling to lose. A nearby approval at 39 Hazelbury Crescent granted a seventh person on exactly this basis. The certificate should be implemented and tenanted to give the argument full weight.



Secondary risks

- Loft volume and head height, resolved by the measured survey.
- Acoustic and fire upgrade for the seventh bedroom, which is a cost item rather than a planning bar.
- Amenity provision, addressed by the large communal space and the co working outbuilding.

Professional view

The scheme is well supported. The six bedroom route is low risk and permitted development. The seventh bedroom is achievable when phased correctly. Pre application advice is optional for the six bedroom stage and advisable for the seventh.

5. Building Regulations and Technical Compliance

The conversion is a full technical upgrade, not a light refurbishment.

Part B, fire

- Protected means of escape, fire doors, and a detection and alarm system.
- Requirements are more onerous at seven bedrooms.

Part E, acoustics

- Separating floors and walls upgraded for sound insulation.
- Additional acoustic work applies to the sui generis seventh bedroom.

Part L, thermal

- Insulation and services upgraded to current standards.
- The EPC should be lifted to at least E, and ideally higher.

Part F, ventilation

- Mechanical extract to the kitchen, bathrooms and en suites.

The absence of a rear extension and the reuse of existing walls limit structural work. The loft, and any floor drop, is the main build item.

6. Commercial Position

Comparable en suite rooms in the LU4 area let at about £625 to £795 per month with bills included. A mid market figure of £675 is adopted for indicative purposes, sourced from SpareRoom listings for Luton in June 2026.

On seven rooms this gives an indicative gross rent of about £56,700 a year. Net of a 25 percent operating allowance for bills, management and voids, this is about £42,500 a year. At a suburban HMO yield of 8.5 percent this implies an indicative capital value of about £500,000.

On the six bedroom base case the indicative gross rent is about £48,600 a year, net about £36,450, implying a value of about £429,000.

Build cost was discussed at about £180,000 for six bedrooms and £200,000 to £220,000 for seven, reflecting the loft and the additional acoustic work. A measured building survey through Point Scan is about £850.

Indicative comparables:



- Swallow Close, LU4, purpose built en suite HMO room, £695 to £795 per month, bills included.
- Lewsey Road, LU4, room at £625 per month.
- Luton average room rate about £650 per month, June 2026.

All figures are indicative and subject to survey, builder quotes and broker validation. The acquisition price is the key variable, and the return improves with a lower purchase price.

7. Key Next Steps

+ Obtain builder quotations using the sketches, ideally from a contractor with experience in HMO projects.

+ Commission a measured building survey through Point Scan, at an estimated cost of £850, once the offer has been accepted. This will take approximately two weeks from instruction.

+ Prepare the existing and proposed drawings, together with the Lawful Development Certificate application for the six bedroom HMO and loft conversion. This will take approximately two weeks from instruction.

+ Prepare the full construction drawing package to support Building Control approval and provide sufficient information for the appointed contractor. This will take approximately three weeks from instruction.

+ Implement the approved works and tenant the six bedroom HMO, ensuring that all licensing and tenancy records are retained.

+ Prepare the planning application for the seventh bedroom under a Sui Generis use, using the established HMO baseline and including the co working outbuilding as additional amenity space. This will take approximately two weeks from instruction.

+ Confirm the HMO licensing requirements and loft head height during the measured survey stage.

8. Conclusion

The property is a sound HMO conversion candidate. It is large, already extended, and free of the main planning constraints. The six bedroom C4 route is low risk and permitted development.

The recommended target is seven bedrooms, delivered in two stages, all en suite, with a large communal space and a co working outbuilding. Eight persons is possible at a later stage but is not recommended as a base case, to avoid over optimising the scheme.

The income is strong. The commercial return depends on the purchase price and the build cost, which should be validated with builder quotes and a broker before committing to the acquisition.

Thistle Architecture

PLANNING RESEARCH AND RISK ANALYSIS

Luton Borough Council

Claremont Road, Luton, Bedfordshire

Date prepared: 8 July 2026

Prepared by Thistle Architecture

This document sets out the planning policy framework and the site specific risks for the proposed conversion. It informs the design strategy and the eventual Design and Access Statement. It is an internal research document and is not a planning submission.

1. Executive Summary (Risk Dashboard)

The site carries a low policy risk for a six person small HMO but a higher risk for the two stretch ambitions, namely a seven or eight person large HMO and the conversion of the rear outbuilding into a separate dwelling. The dashboard below rates each issue.

Issue	Risk	Summary
Article 4 direction (change of use)	LOW	Luton has no HMO Article 4 direction anywhere in the borough. Change of use from C3 to C4 (up to six persons) is permitted development.
Conservation area and heritage	LOW	The site is not within a conservation area and is not listed. No heritage control applies to the proposed rear dormer.
HMO density and sandwich rule	LOW	Luton has no numeric HMO concentration threshold and no HMO SPD. Concentration is a qualitative character consideration only.
Family housing protection (seven plus route)	HIGH	For a seven or eight person sui generis HMO, Luton consistently refuses the loss of a family dwelling under LLP1 and LLP15. This does not apply to the six person C4 route.
Highways and parking	LOW	Maximum only standards. A converted terrace HMO is treated as car free by standard. Highways raised no objection in any of the eight local decisions reviewed.
Amenity and waste standards	MEDIUM	No fixed HMO amenity figure. The rear garden must serve both the HMO and the proposed outbuilding unit. Deliverable with a clear amenity and refuse strategy.
Rear dormer	LOW	Rear and side dormers are routinely permitted development in Luton

		within the Class B volume limits, as confirmed by a near identical local certificate.
Outbuilding to self contained one bed unit	HIGH	Creates a new dwelling assessed under LLP15 and LLP25. No supporting precedent in the supplied evidence and a comparable garden unit refusal was upheld at appeal.
Local decision precedent	MEDIUM	Luton grants C4 conversions and dormers as permitted development but refuses seven plus conversions of family dwellings unless an established lawful HMO use exists.
Recent applications nearby	LOW	The dominant local route is the lawful development certificate for a six person C4 HMO, which sidesteps discretionary refusal.

2. Site Context Recap

The site is a mid terrace dwelling on Claremont Road, in the Beech Hill ward of north west Luton, off the Dunstable Road corridor. The property is currently in use as a single family dwellinghouse (Use Class C3) arranged as three bedrooms with three reception rooms. The local planning authority is Luton Borough Council.

The proposal is to convert the dwelling into a six bedroom HMO by means of a rear dormer, with a client aspiration to increase to seven and to test eight bedrooms. Separately, the rear outbuilding is proposed for conversion into a one bedroom self contained unit with its own side access. The occupancy target for the space standards research is seven persons.

3. Local Plan Policy Framework

The adopted development plan is the Luton Local Plan 2011 to 2031, adopted on 7 November 2017. A new Local Plan running to around 2040 is in early preparation, with a Regulation 18 draft expected during 2026. The emerging plan carries negligible material weight at present because no draft policies or HMO thresholds have been published.

- **LLP1 Presumption in Favour of Sustainable Development** — The overarching policy applied to every HMO decision alongside the housing and design policies.
- **LLP2 Spatial Development Strategy** — Sets the borough wide framework for growth and change of use.
- **LLP15 Housing Provision** — Supports housing delivery and is used, with LLP1, to resist the loss of family sized dwellings to HMO use.
- **LLP16 Affordable Housing** — Affordable housing is required on a net gain of eleven or more dwellings, so it is not triggered by this scheme.
- **LLP17 Houses in Multiple Occupation** — The key HMO policy, a qualitative criteria based test covering character, standards and amenity.
- **LLP19 Extensions to Dwellings and Annexes** — Governs the rear dormer. Part C excludes self contained units from the annexe route.
- **LLP25 High Quality Design** — The main design, character and residential amenity policy, cross referring to the amenity standards in Appendix 6.
- **LLP31 Sustainable Transport Strategy** — Applied with LLP32 to access and transport matters.
- **LLP32 Parking** — Residential parking is assessed against maximum standards in Appendix 2, with cycle storage required.

4. HMO Specific Policy Analysis

- **No HMO SPD.** Luton has not adopted an HMO Supplementary Planning Document. HMOs are controlled solely by Local Plan Policy LLP17.
- **LLP17 criteria.** LLP17 permits the creation of an HMO provided that (i) the proposal, or its cumulative impact with other similar proposals, would not adversely affect the character of the area; (ii) the units conform with adopted licensing and amenity standards and with design policy LLP25; and (iii) appropriate outdoor amenity space, bin storage and parking are provided.
- **No density threshold.** Luton has no numeric concentration threshold, no percentage rule, no radius test and no sandwich rule. Concentration is judged qualitatively under LLP17(i). The often quoted figure of ten per cent within one hundred metres is Bristol policy and does not apply in Luton.
- **Family housing.** There is no dedicated policy protecting family housing. In practice, Luton refuses the loss of four plus bedroom dwellings to sui generis HMO use under LLP1 and LLP15, relying on the Strategic Housing Market Assessment (a need for 2,590 four plus bedroom dwellings against roughly 333 to 402 delivered between 2011 and 2019) and, from early 2025, on the shortfall in the five year housing land supply (recorded at 3.36 to 3.6 years). The evidence needed to overcome this is either an established lawful HMO use on the site or an overriding justification.
- **C4 versus sui generis.** A small HMO of three to six unrelated persons is Use Class C4 and the change from C3 is permitted development in Luton. A large HMO of seven or more persons is sui generis and always requires planning permission, assessed under LLP17.

5. Article 4 Direction Analysis

The site is not within any Article 4 direction that removes HMO permitted development rights, because no such direction exists in Luton. The council operates three modern Article 4 directions, at Butterfield Green and Capability Green (in force 1 August 2022) and Luton Town Centre and surrounds (in force 6 October 2023). All three remove Class MA rights only, that is the change from commercial Class E to residential C3. None removes the C3 to C4 change of use.

The consequence is that the change of use from a dwellinghouse to a six person small HMO is permitted development at the site and can be confirmed by a Lawful Development Certificate. A move to seven or more persons is sui generis and requires a full planning application. The rear dormer and the outbuilding conversion require their own consents regardless of the Article 4 position.

6. Conservation Area, Heritage and Design

The site is not within a conservation area. Luton has five conservation areas, all in central and eastern Luton, none of which covers the Beech Hill area. The property is not statutorily listed and is not locally listed, and there are no listed buildings on Claremont Road. The Claremont Buildings entry that appears in searches is in Newcastle upon Tyne and is not relevant. The nearest listed buildings, Bury Park United Reformed Church and 127 Dunstable Road, are not adjacent and would not constrain a rear alteration. The rear dormer is therefore assessed on ordinary design and amenity policy under LLP19 and LLP25, not on heritage grounds.

7. HMO Density Assessment for this Site

Luton applies no numeric HMO density threshold, so density is not a quantitative test at this site. Concentration is relevant only as a qualitative character consideration under LLP17(i), and only where a full planning application is required. An HMO Checker report has been commissioned for the property. The specific figures for licensed HMOs, total residential properties and the percentage within the assessment radius were not extractable at the time of writing and are to be confirmed from that report. Because no numeric threshold exists, a high recorded concentration would not by itself trigger a refusal, although it would be weighed in the character assessment for any sui generis application.

Density position: not a numeric fail. No adopted threshold applies. HMO Checker report figures to be confirmed by the client and treated as informative only.

8. Recent Application Trends Nearby

The table below sets out comparable HMO decisions in Luton, drawn from the supplied case officer reports and the council portal. The clear pattern is that six person C4 conversions proceed through the lawful development certificate route, while seven and eight person sui generis conversions of family dwellings are refused.

Reference	Address	Proposal	Outcome	Key reason
26/00274/LAWP	5 Shaftsbury Road, LU4 8AL	Rear dormer and rooflights, C3 to four person C4 HMO	Lawful	Dormer and C4 confirmed permitted development
22/01291/LAWP	287 Dunstable Road, LU4 8BS	C3 to six person C4 HMO	Lawful	C4 conversion is permitted development
23/01195/FUL	39 Hazelbury Crescent, LU1 1JU	Six person C4 to seven person sui generis plus rear dormer	Approved	Established lawful HMO baseline; occupancy capped at seven
21/01127/COU	24 Mansfield Road, LU4 8NA	C3 to seven person sui generis HMO	Refused	Loss of family dwelling; intensification
23/00538/COU	11 Rockley Road, LU1 5RW	C3 to eight person sui generis HMO	Refused	Loss of family dwelling; neighbour amenity
24/00794/FUL	23 Downs Road, LU1 1QP	C3 to eight person sui generis HMO plus rooflights	Refused	Loss of dwelling; inadequate HMO standards detail
24/01257/COU	220 Biscot Road, LU3 1AY	C3 to eight person sui generis HMO	Refused	Loss of dwelling; undersized rooms; amenity

The recurring refusal reasons are the loss of a family dwelling (LLP1 and LLP15) and material intensification harming neighbour amenity (LLP17 and LLP25). The recurring approval factors are staying within permitted development for the C4 and the dormer, and, where full permission is needed, an established lawful HMO use on the site.

9. Local Decision Pattern Analysis

Eight Luton case officer reports were reviewed. These are delegated decision reports rather than Planning Inspectorate appeal decisions. They are analysed here as local decision precedent. Two dismissed appeals are cited within them (references APP/B0230/W/21/3286040 and APP/B0230/C/24/3354644), which Luton reuses to support intensification refusals.

Refused decisions

Reference	Site	Year	Reasoning summary
21/01127/COU	24 Mansfield Road	2021	Seven person conversion of a terrace refused for loss of a family dwelling and intensification harming character and neighbour amenity.
23/00538/COU	11 Rockley Road	2023	Eight person conversion refused on principle and neighbour amenity despite an internally compliant layout; a dismissed appeal was cited.
24/00794/FUL	23 Downs Road	2024	Eight person conversion refused for loss of a family dwelling and for inadequate detail on HMO

			licensing and living standards.
24/01257/COU	220 Biscot Road	2025	Eight person conversion refused for loss of a dwelling and for an undersized 6.8 sqm room below the national standard; character was not a reason on this mixed street.

The dominant pattern is a twin refusal of loss of a four plus bedroom family dwelling under LLP1 and LLP15, paired with intensification harming neighbour amenity under LLP17 and LLP25. The six person C4 fall back is acknowledged in each case but given little weight, because seven plus persons is where the material differences between a dwelling and an HMO emerge.

Approved decisions

Reference	Site	Year	Reasoning summary
22/01291/LAWP	287 Dunstable Road	2022	Six person C4 confirmed lawful as permitted development; the application was downgraded from a full application to a certificate to avoid the loss of dwelling objection.
26/00274/LAWP	5 Shaftsbury Road	2026	Rear and side dormer with rooflights plus a four person C4 confirmed lawful; the dormer at 25.2 cubic metres sat below the forty cubic metre terrace threshold.
23/01195/FUL	39 Hazelbury Crescent	2024	Six to seven person sui generis granted because a lawful licensed C4 HMO had existed since 2016, removing the loss objection; conditioned to a maximum of seven residents and a rear bin store.

The approvals confirm two safe routes. The first is to stay within permitted development for the C4 conversion and the rear dormer, which is lawful and not subject to discretion. The second, for any increase to seven persons, is to establish a lawful C4 HMO use first and then apply for the additional resident against that baseline, as at 39 Hazelbury Crescent. None of the eight reports addresses an outbuilding conversion, so that element is not supported by this evidence.

10. Site Specific Risks

1. Loss of a family dwelling on the sui generis route. The property is a family sized dwelling. Luton consistently refuses the change to a seven or eight person HMO under LLP1 and LLP15, reinforced by the housing land supply shortfall. Mitigation: deliver the six person C4 HMO first under a certificate to establish a lawful HMO use, then seek the seventh bedroom as sui generis on the established baseline basis, following the 39 Hazelbury Crescent model.

2. Outbuilding conversion to a separate dwelling. The proposed one bedroom self contained unit creates a new planning unit judged under LLP15 and LLP25, not the annexe route, because LLP19 Part C excludes self contained units. A comparable garden unit was refused and dismissed at appeal. Mitigation: decide early between a genuine ancillary annexe with a functional link to the house and no independent letting, or a policy

compliant new dwelling with independent access, parking within the maximum, private amenity and no overlooking. Pre application advice is recommended for this element.

3. Undersized rooms on a full application. Luton refused a room of 6.8 sqm at 220 Biscot Road as below the national described space standard of 7.5 sqm for a single bedroom. Mitigation: size single bedrooms to at least 7.5 sqm and doubles to at least 11.5 sqm for any full application, exceeding the 6.51 sqm HMO licensing floor, and submit a full room schedule.

4. Rear dormer exceeding permitted development. A dormer on the principal roof slope, or one that exceeds the forty cubic metre terrace volume allowance, would fall outside permitted development. Mitigation: keep the dormer to the rear and side roof slopes, within the volume allowance, set back from the eaves, with obscured side glazing and matching materials, mirroring the 5 Shaftsbury Road certificate.

5. Neighbour amenity and intensification. Intensification from unrelated occupants is a repeated refusal reason. Mitigation: provide sound insulation to BS8233 2014, a management plan, and arrange rooms and openings away from neighbouring windows, as conditioned at 39 Hazelbury Crescent.

6. Division of rear garden amenity. Converting the outbuilding consumes rear garden that would otherwise serve the HMO shared amenity. Mitigation: demonstrate retained shared amenity for the HMO and Appendix 6 compliant private or communal amenity for the new unit.

7. Refuse storage on a terraced street. Officers scrutinise bin storage and presentation on terraces and condition rear stores. Mitigation: provide a dedicated screened rear bin store with a clear presentation route and confirm that containers do not stand permanently on the footway.

8. Parking perception. The property has no off street parking, although the standards impose no minimum. Mitigation: submit a Transport Statement and on street parking survey, adopt a car free and cycle led approach, and confirm the controlled parking zone status against the traffic order.

9. HMO licensing evidence gap. At 23 Downs Road a lack of licensing and amenity detail was itself a refusal reason. Mitigation: submit a full space standards schedule and licensing compliance with any application.

11. Recommendations and Mitigation Strategy

1. Phase the scheme. Deliver Stage 1 as a six person C4 HMO with a compliant rear dormer through a Lawful Development Certificate. This avoids the loss of dwelling refusal entirely and is the lowest risk route to a functioning HMO.

2. For any increase to seven persons, deliver Stage 2 only after the C4 HMO is lawful, licensed and operating, and apply for the additional resident as sui generis on the established baseline basis, accepting an occupancy cap condition. This follows the only local approval at this level.

3. Treat the outbuilding as the primary planning risk. Decide between a genuine ancillary annexe with a functional link, or a full planning new dwelling that is policy compliant on access, parking, amenity and overlooking. Do not present a self contained unit as an annexe.

4. Size all bedrooms to the national described space standard of 7.5 sqm for a single and 11.5 sqm for a double on any full application, exceeding the 6.51 sqm licensing floor.

5. Provide a clear amenity and waste strategy, retaining demonstrable shared garden amenity for the HMO, a screened rear bin store, and Appendix 6 compliant amenity for the new unit.

6. Submit a Transport Statement and on street parking survey, adopt a car free and cycle led approach, and confirm the controlled parking zone status.

7. Accompany any application with a full HMO space standards schedule and evidence of licensing compliance.

Pre application advice: recommended for the outbuilding unit and for any move to a seven plus sui generis HMO. It is optional for the six person C4 dormer route, which is low risk and can be confirmed by certificate.

Documents to accompany a full application: Design and Access Statement, HMO room and space standards schedule, Transport Statement and parking survey, Refuse and Recycling Strategy, and a management plan. A Heritage Impact Assessment is not required because the site carries no heritage designation.

12. Sources and References

Local Plan and policy

- Luton Local Plan 2011 to 2031 (adopted November 2017): luton.gov.uk/planning-building-control/planning/luton-local-plan/local-plan-2011-2031 — accessed 08-07-2026
- Luton HMO Standards (Private Sector Housing Enforcement): luton.gov.uk/housing/private-tenants-homeowners-landlords/landlords/mandatory-house-multiple-occupation-hmo-licensing/hmo-standards — accessed 08-07-2026
- Luton Supplementary Planning Documents list: luton.gov.uk/planning-building-control/planning/planning-policy/supplementary-planning-documents — accessed 08-07-2026

Article 4 and conservation

- Current Article 4 directions: luton.gov.uk/planning-building-control/planning/article-4-directions/current-article-4-directions — accessed 08-07-2026
- Conservation areas: luton.gov.uk/planning-building-control/planning/conservation-design-natural-environment/conservation-areas — accessed 08-07-2026

Local decisions (supplied case officer reports)

- 21/01127/COU 24 Mansfield Road; 23/00538/COU 11 Rockley Road; 24/00794/FUL 23 Downs Road; 24/01257/COU 220 Biscot Road; 22/01291/LAWP 287 Dunstable Road; 26/00274/LAWP 5 Shaftsbury Road; 23/01195/FUL 39 Hazelbury Crescent; 23/00742/AMEND 9 Denbigh Road - accessed 08-07-2026
- Cited within the reports: appeal APP/B0230/W/21/3286040 and enforcement appeal APP/B0230/C/24/3354644 — accessed 08-07-2026

Council planning portal and other

- Luton planning portal (Idox): publicaccess.luton.gov.uk — accessed 08-07-2026
- HMO Checker: app.hmochecker.co.uk - accessed 08-07-2026
- Ward and postcode data: crystalroof.co.uk - accessed 08-07-2026

Thistle Architecture

Research compiled by Thistle Architecture from official local authority and Planning Inspectorate documentation.

Thistle Architecture

INITIAL RESEARCH

Luton Borough Council

HMO Space Standards Summary

7 OCCUPANTS

Research compiled by: Thistle Architecture

Source: Luton Borough Council, Houses in Multiple Occupation Standards (Private Sector Housing Enforcement)

Date: July 2026

1. Bedroom Standards

Room Type	Minimum Size	Ceiling Height
1 person (aged over 10)	6.51 sqm	2.13m min*
2 persons (couple)	10.22 sqm**	2.13m min*
Person aged under 10	4.64 sqm	2.13m min*

*2.13m (2130mm) floor to ceiling. Where the ceiling slopes, 2.13m over at least 50% of the floor area. Floor area measured on a plane 1500mm above floor level; any area below 1500mm is disregarded. No room below 4.64 sqm may be used for sleeping.

**Two person (double) rooms: 10.22 sqm is the national mandatory licence condition (Licensing of HMOs (Mandatory Conditions of Licences) (England) Regulations 2018), applied by Luton. Rooms for two are normally suitable only for a couple or cohabitantes.

2. Kitchen & Communal Standards for 7 Occupants

Minimum Room Sizes (6 to 10 occupiers)

- Shared kitchen (no separate dining area): 11 sqm
- Kitchen-diner: 12.5 sqm
- Separate living room or dining room: 12.5 sqm

Where more than 5 occupiers share a kitchen with no separate dining area, additional facilities may be required. The kitchen must be no more than one floor from the bedrooms or dining area.

Kitchen Fittings

- Sinks: 2no sink and drainer, each min 500mm x 1000mm (ratio 1 per 5 occupiers). For 6 to 10 occupiers a double-bowled sink or a dishwasher in addition to a single sink may be accepted.
- Worktop: 2no fixed worktop, each min 500mm x 1500mm (1 per 5 occupiers), in addition to space for the sink, cooker and any large appliance.

- Cooking: 2no cooker (600mm, min 4 ring burners and grill), or 1no cooker plus microwaves as required.
- Sockets: 3no double sockets per 5 occupiers above the worktops, plus 1 per fixed appliance.
- Splashback: 300mm to sink and worktops where they abut a wall.

Provision for 7 Occupants

2 SINKS + 2 COOKERS (or 1 cooker plus microwaves) REQUIRED

3. Bathroom & WC for 7 Occupants

Facility	Required	Notes
Bathrooms	2	Each with bath/shower + wash basin (6 to 10 persons)
WCs	2	May be sited within the 2 separate bathrooms
Wash basin	550mm x 400mm	1 per bath/shower room (max 5 occupiers), 300mm splashback
Splashback / flooring	300mm tiled	Smooth, non-absorbent, easily cleaned

- A bathroom must be no more than one floor distant from the bedrooms; a toilet no more than one floor from living and bedrooms.
- A separate WC (not required until 9 occupiers) must have its own wash hand basin to count.
- Bath min: 1700mm x 700mm | Shower min compartment with fully tiled walls or a self-contained cubicle.
- En-suites count towards facility provision where in exclusive use.

4. Key Notes

- Licensing: all HMOs occupied by 5 or more people in 2 or more households sharing amenities require a licence in Luton, regardless of the number of storeys.
- Room sharing: persons over 10 must not share sleeping accommodation with a non-close-relative or someone of the opposite sex unless cohabiting.
- Natural light: glazed area to habitable rooms at least 1/10th of the floor area.
- Ventilation: openable window area at least 1/20th of the floor area; mechanical extract to kitchens, bathrooms and WCs.
- Window restrictors: required above ground floor where the sill is within 1100mm of floor level (open no more than 100mm, easily over-riden in a fire).
- Guarding: to stairs, balconies and landings min 1100mm high, no gap allowing a 100mm sphere to pass.
- Heating: capable of 21C in living/sleeping rooms and 22C in bathrooms when it is -1C outside.

5. Design Checklist

Type X in the Done column to mark complete

Requirement	Standard	Done
Single bedrooms (1 person)	>= 6.51 sqm	
Double bedrooms (couple)	>= 10.22 sqm	
Shared kitchen	>= 11 sqm	
Living / dining room	>= 12.5 sqm	

Sinks	2 (500 x 1000mm)	
Cookers	2 (or 1 + microwaves)	
Bathrooms	2 required	
WCs	2 (may be in bathrooms)	
Ceiling height	2.13m (50%)	
Bathroom / WC distance	Max 1 floor from beds	

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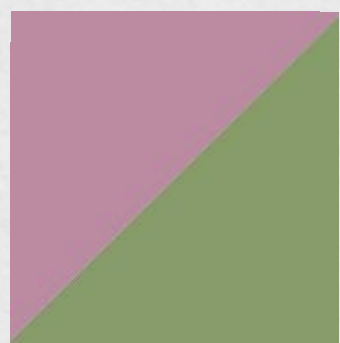
Research compiled by Thistle Architecture from official council documentation.

SKETCH LAYOUT DISCLAIMER

This drawing is issued for feasibility and discussion purposes only.

- This drawing is not to scale.
- Dimensions are approximate and subject to full measured survey.
- Layout based on plans and information provided by others.
- Existing dimensions, wall thicknesses and structural elements have not been verified on site.
- All areas shown are indicative only.
- Room sizes are subject to confirmation following measured survey and detailed design development.
- Structural feasibility has not yet been confirmed.
- Existing construction type and condition to be verified.
- Subject to planning, licensing and building regulations approval.
- Subject to fire strategy, acoustic assessment and structural engineer input.
- Services positions and capacities not yet surveyed.
- No construction work is to be undertaken based on this drawing.

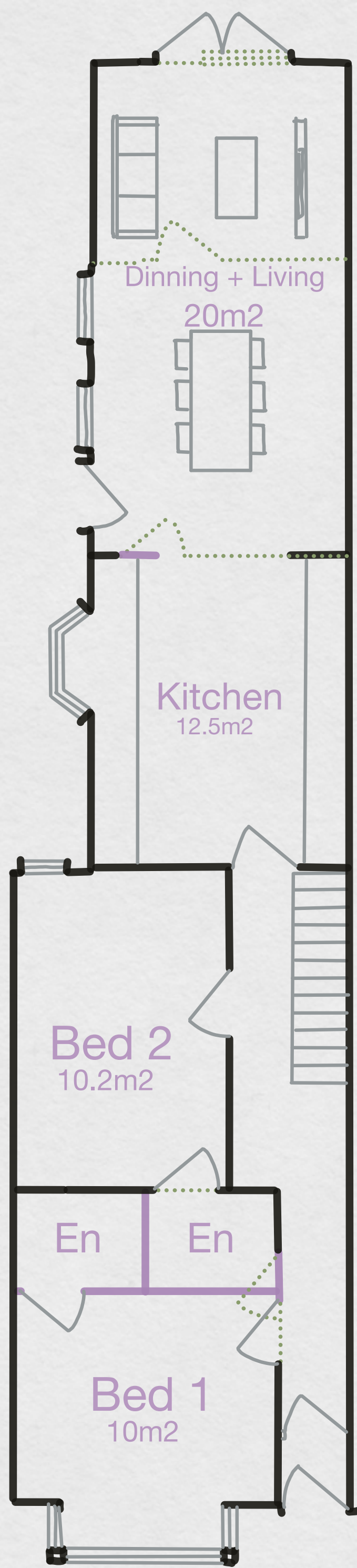
This drawing remains the copyright of the architect.



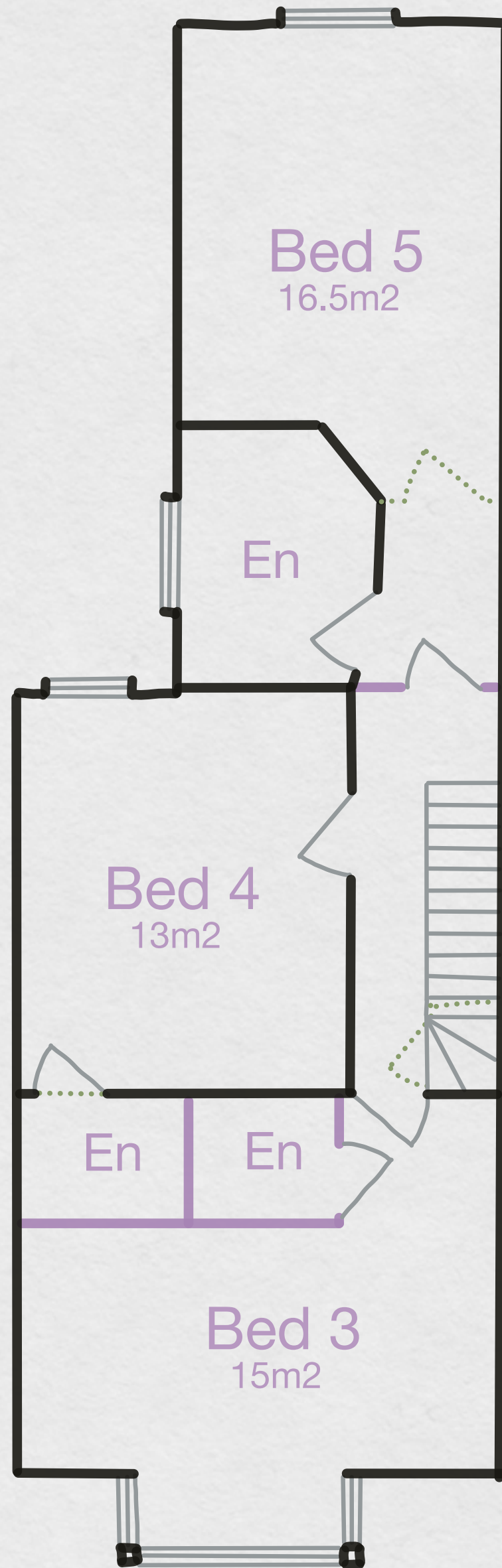
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Key

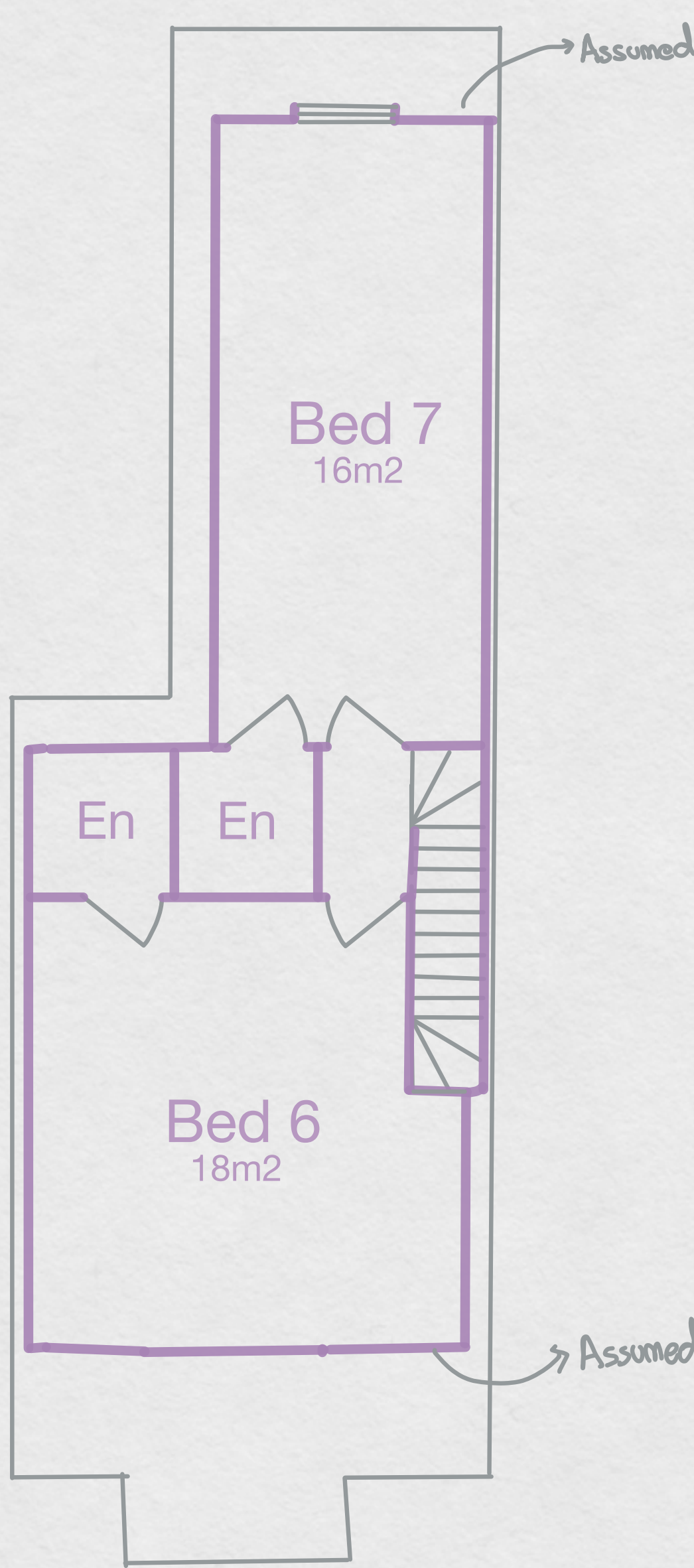
- Existing
- Proposed
- Demolished



Ground Floor



First Floor



Second Floor